

WHEN WAS AFSPA ENACTED?

In May 1958, President Rajendra Prasad promulgated the British-era Armed Forces (Special Powers) ordinance to handle insurgency in Nagaland. Four months later, Parliament passed AFSPA into law.

WHEN AND HOW IS AFSPA ENFORCED?

AFSPA comes into force in 'disturbed areas'. The centre, state governments or the administrator of a Union Territory can declare the whole/ part of the state or UT as a 'disturbed area' if "the use of armed forces in aid of the civil power is necessary". The Union home ministry usually takes the decision to enforce AFSPA, though it can also leave the decision to states.

WHAT HAPPENS WHEN AFSPA IS ENFORCED?

The Act allows the armed forces to open fire at any person violating the law or carrying arms. It gives them powers to prohibit a gathering of five or more people, arrest individuals without warrants based on "reasonable suspicion", and search premises without warrants. The Act gives security personnel full legal impunity.

WHY HAS AFSPA BEEN CRITICISED?

Critics say sweeping powers under AFSPA resulted in human rights violations. In 2017, an RTI application found that between 2012 and 2016, 186 complaints of violations, including death and sexual crimes, were registered against armed forces in states with AFSPA. Between 1991 and 2015, 38 requests for the sanction of prosecution under AFSPA were made but were denied in 30 cases. Manipur's Irom Sharmila went on a hunger strike for 16 years from 2000 after 10 people were killed in Malom. Sometimes the system does crank into motion, Amshipura being a case in point.

WHAT'S THE CENTRE'S STAND?

In 2005, the Justice B.P. Jeevan Reddy Committee, appointed by the Centre to review AFSPA, recommended its complete repeal. The Administrative Reforms Commission reiterated it in 2007. In March 2015, the Union government rejected the recommendations.

THE SC'S VIEW

A PIL filed in the Supreme Court claimed that 1,528 extrajudicial killings took place in Manipur between 2000 and 2012. In July 2016, the SC ordered a probe and said AFSPA did not guarantee blanket impunity to armed forces. In 2018, contesting the CBI's court-appointed probe, 300 army officers moved the SC, saying they had been "persecuted" for performing their duties. The SC rejected the plea.

Where in Northeast is AFSPA still applicable?

NINE DISTRICTS IN ASSAM Karbi Anglong, West Karbi Anglong, Dima Hasao, Dibrugarh, Tinsukia, Charaideo, Sivasagar, Golaghat, Jorhat, and Lakhipur subdivision of Cachar district

ARUNACHAL PRADESH Tirap, Changlang and Longding districts and areas under Namsai and Mahadevpur police stations bordering Assam

NAGALAND, IN NINE DISTRICTS ENTIRELY Chumoukedima, Dimapur, Kiphire, Mon, Niuland, Peren, Phek, Zunheboto and Noklak—and in four districts partially—Kohima, Mokokchung, Wokha and Longleng

In which other regions has AFSPA been enforced?

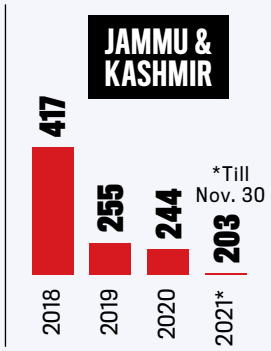
- Jammu and Kashmir continues to be under AFSPA since 1990
- It was in force in Punjab between 1983 and 1997

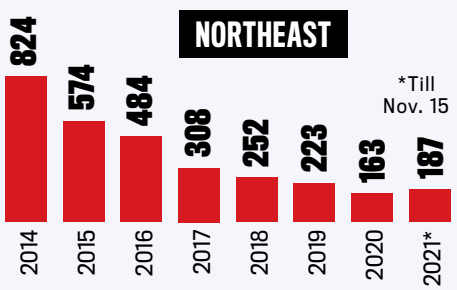


THE AFSPA IMPACT

The sharp decline in terror-related incidents after 2014 has given more voice to the demand for repeal of AFSPA

(Number of terrorism related incidents)





Sources: Lok Sabha, November 30, 2021; Rajya Sabha, December 15, 2021